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Two new laws crack down on sexual harassment at California universities

July 22, 2024 | East Bay Times: Web Edition Articles (CA)
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OpenURL Link

A year after a scathing report revealed widespread mishandling of sexual misconduct claims at San Jose State and across the California State University system, two new laws will require stronger sexual harassment policies at its 23 campuses.

The new laws Gov. Gavin Newsom signed July 15 require Cal State University officials to expand current sexual assault prevention training, standardize investigation and reporting processes, track cases and address unprofessional conduct that doesn't fall under sexual harassment.

"The signing of these bills is a significant first step to fostering cultural change, accountability and trust at these institutions," said Assemblyman Mike Fong, an Alhambra Democrat who chairs the Assembly Higher Education Committee and coordinated a 12-bill package addressing sexual harassment.

Amy Bentley-Smith, a Cal State University spokeswoman, said "CSU has worked very closely with the Legislature on this bill package for the last year and are pleased to see both bills signed." San Jose State declined to comment on the bills.

San Jose State, the oldest CSU campus, made headlines in 2020 when an investigation revealed that the Spartans' sports medicine director and head athletic trainer, Scott Shaw, had sexually harassed at least ten former and current SJSU student-athletes.

The scandal led to a U.S. Department of Justice investigation, the resignations of the school's president, Mary Papazian, and Athletic Director Marie Tuite and forced the university to pay more than $5 million to over two dozen athletes Shaw had treated. In November, Shaw was sentenced to two years for sexually abusing students under the guise of treatment.

Controversy hit the Cal State University system again in 2022 when a USA Today investigation found the system's then-chancellor, Joseph I. Castro, had mishandled sexual harassment claims while he was president of Fresno State. Castro resigned shortly after, along with several other top officials across the university's 23 campuses.

To address the growing problem, Cal State University paid San Francisco-based law firm Cozen O'Connor around $1 million to conduct a systemwide investigation into how its campuses were handling sexual misconduct complaints. The 236-page Cozen O'Connor report — released July 2023 — found failures across the entire university system that resulted in the mishandling of hundreds of sexual misconduct complaints.

A separate July 2023 report by the California State Auditor — which focused on Cal State University's Chancellor's Office and three campuses, including San Jose State — found similar concerns with how campuses were investigating allegations and disciplining employees who had engaged in sexual harassment or misconduct.

The state auditor report included eight recommendations for the CSU Chancellor's Office to improve the university's policies, including requiring case tracking, consistent investigation and reporting processes and establishing requirements for addressing conduct that is unprofessional but does not fall under sexual harassment.

One of the bills Newsom signed, AB 1790 by Assemblyman Damon Connolly, a San Rafael Democrat, requires California State University to implement the auditor's recommendations by July 1, 2026. The university system also must submit an initial report of the status of implementation by July 1 of next year.

"This legislation will ensure that survivors are heard, perpetrators are held accountable, and our educational institutions uphold the highest standards of justice and support," Connolly said in a news release.

Newsom also signed AB 2608 by Assemblyman Jesse Gabriel, an Encino Democrat, which will expand current sexual assault prevention training at colleges and universities to include topics related to alcohol- and drug-facilitated sexual assault and increase students' access to confidential support and resources. Bentley-Smith said Cal State University officially supported the bill.

Fong said the 12-bill package aims to address and prevent sexual harassment at higher education institutions across the state, improving the campus climate at all California colleges and universities, not just Cal State University.

He added that improving how California addresses and prevents sexual discrimination and harassment at colleges and universities has been a priority of the Assembly Higher Education Committee for many years.

The other bills in the 12-bill package are working their way through the state Legislature, including some that would require a systemwide Office of Civil Rights to oversee policies and establish a Title IX office at CSU and UC campuses, and a few that would have implications for employees who have engaged in sexual harassment.

One aims to target "pass the harasser" policies — a well-known practice referred to by the Chronicle of Higher Education as "higher ed's worst-kept secret."

Currently, a college faculty, staff or administrator found to have committed sexual harassment can resign and still get a new job at a different campus because universities don't share previous misconduct of former employees.

AB 810, by Glendale Assemblywoman Laura Friedman, a Burbank Democrat, would require applicants to disclose if they had previously been found guilty of sexual misconduct. Friedman said the bill does not prohibit a college from hiring the applicant, but ensures administrators are aware of that applicant's history.

"It's very important that the schools have all of the information about what was alleged and what the findings were so they can make a decision," Friedman said.

The Cal State Student Association, which represents nearly half a million students in the CSU system, voiced support for nearly every bill in the 12-bill package, including Friedman's bill.

"We commend the efforts put forth in the Call to Action Report by the committee," the association said. "The findings underscored significant shortcomings in addressing discrimination and inequitable treatment within the CSU system which deeply concern us."

Fong said he is hopeful the entire legislative package will be signed into law, but knows it will be a multiyear effort.

"There is still much work ahead," Fong said, "but I am confident in the impact this legislative package will have for our campus communities."

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- **Citation (apa Style)**
  Gibbs, M. (2024, July 22). Two new laws crack down on sexual harassment at California universities.*East Bay Times: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19AA3CE09FBF2E98.